

Court No. - 3

Case :- WRIT - C No. - 14513 of 2016

Petitioner :- Ram Chandra Singh

Respondent :- State Of U.P. And 3 Ors..

Counsel for Petitioner :- Gulab Chandra

Counsel for Respondent :- C.S.C.,Chandan Agarwal

Hon'ble Krishna Murari,J.

Hon'ble Vinod Kumar Misra,J.

Sri Anshul Kumar Singhal, Advocate holding brief of Sri Chandan Agarwal, learned counsel for the power corporation prays for and is granted two weeks' time to seek instructions specifically with regard to the outstanding arrears or electricity dues against the petitioner.

Put up as fresh on 18th April, 2016.

Order Date :- 1.4.2016

A. Pt. Singh

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Heard learned counsel for the petitioner and S/Sri Gulab Chand and Chandan Agarwal appearing for respondent nos.1 & 2.

Petitioner has approached this Court challenging the proceedings initiated by the respondent-Corporation for recovery of its outstanding dues. Petitioner challenges the correctness of the bill for which recovery has been initiated.

Clause 6.5 (b) of the U.P. Electricity Supply Code, 2005 (for short the Code) provides for making a complaint before the competent authority if the consumer disputes the accuracy of the bill.

Since the disputed questions of fact are involved and the petitioner has a remedy, this writ petition stands finally disposed of with liberty to the petitioner to make an appropriate complaint before the competent authority in accordance with the provisions of clause 6.5 (b) of the Code within a period of one week from today with the further direction to the authority concerned to consider and pass appropriate orders on the complaint so made in accordance with law within a further period of two weeks of the making of the complaint.

For a period of four weeks or till the disposal of the complaint, as directed aforesaid, whichever is earlier, recovery proceedings initiated against the petitioner shall remain in abeyance and shall abide by the orders to be passed by the authority concerned.

It is further provided that after depositing the amount by the petitioner, the electricity connection shall be restored forthwith.

Order Date :- 18.4.2016

Dcs